

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 39-002
Amendments to Title 17 of the Chickasaw Nation Code
(Assault and Battery)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations for offenses and penalties and desires to amend those rules and regulations.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves the following amendments to Title 17, Chapter 5, Article C, of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red; deletions are stricken through; and omissions without deletions of substance are signified by “* * *”):

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Section 17-501.9	Assault and Battery with Dangerous Weapon.
Section 17-501.10	Aggravated Assault and Battery.
Section 17-501.11	Assault and Battery on Law Enforcement Officer.
Section 17-501.12	Assault and Battery on Officer of Court.
Section 17-501.13	Assault and Battery on Medical Care Provider.
Section 17-501.14	Placing Bodily Fluids upon Government Employee.
Section 17-501.15	Shooting with Intent to Kill.
Section 17-501.16	Assault.
Section 17-501.17	Battery.

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SECTION 17-501.9

ASSAULT AND BATTERY WITH DANGEROUS WEAPON.

A. It shall be unlawful for every person who, with intent to do bodily harm and without justifiable or excusable cause, commits any assault, battery, or assault and battery upon the person of another with any sharp or dangerous weapon.

B. Assault and Battery with Dangerous Weapon shall be punishable by a fine not to exceed fifteen thousand dollars (\$15,000), by a term of imprisonment not to exceed three (3) years, or by both such fine and imprisonment.

SECTION 17-501.10 **AGGRAVATED ASSAULT AND BATTERY.**

A. It shall be unlawful for every person who, with intent to do bodily harm and without justifiable or excusable cause, commits an assault and battery upon a person of another:

1. causing serious bodily injury; or
2. when committed by a person of robust health or strength upon one who is aged, decrepit, or incapacitated.

B. For purposes of this section "serious bodily injury" means bone fracture, protracted and obvious disfigurement, protracted loss or impairment of the function of a body part, organ or mental faculty, or substantial risk of death.

C. Aggravated Assault and Battery shall be punishable by a fine not to exceed fifteen thousand dollars (\$15,000), by a term of imprisonment not to exceed three (3) years, or by both such fine and imprisonment.

SECTION 17-501.11 **ASSAULT AND BATTERY ON LAW ENFORCEMENT OFFICER.**

A. It shall be unlawful for every person who, without justifiable or excusable cause knowingly commits an assault, battery or assault and battery upon the person of a Law Enforcement Officer as defined in Section 5-201.2.

B. Assault and Battery on Law Enforcement Officer shall be punishable by a fine not to exceed fifteen thousand dollars (\$15,000), by a term of imprisonment not to exceed three (3) years, or by both such fine and imprisonment.

SECTION 17-501.12 **ASSAULT AND BATTERY ON OFFICER OF COURT.**

A. It shall be unlawful for every person who, without justifiable or excusable cause knowingly commits an assault, battery or assault and battery upon an Officer of the Court.

B. For purposes of this section, "Officer of the Court" means judges, bailiffs, court reporters, court clerks, witnesses, jurors, prosecutors, probation officers, or other employees of the court or prosecution staff.

C. Assault and Battery on Officer of Court shall be punishable by a fine not to exceed fifteen thousand dollars (\$15,000), by a term of imprisonment not to exceed three (3) years, or by both such fine and imprisonment.

SECTION 17-501.13**ASSAULT AND BATTERY ON MEDICAL CARE PROVIDER.**

A. It shall be unlawful for every person who, without justifiable or excusable cause and with intent to do bodily harm, commits any assault, battery, or assault and battery upon the person of a medical care provider who is performing medical care duties.

B. For purposes of this section, "medical care provider" means doctors, residents, interns, nurses, nurses' aides, ambulance attendants and operators, paramedics, emergency medical technicians, laboratory technicians, radiologic technologists, physical therapists, physician assistants, chaplains, volunteers, pharmacists, nursing students, medical students, and members of a hospital security force.

C. Assault and Battery on Medical Care Provider(s) shall be punishable by a fine not to exceed fifteen thousand dollars (\$15,000), by a term of imprisonment not to exceed three (3) years, or by both such fine and imprisonment.

SECTION 17-501.14**PLACING BODILY FLUIDS UPON GOVERNMENT EMPLOYEE.**

A. It shall be unlawful for every person in the custody of the tribe, state, county, municipal city or federal government who throws, transfers, or in any manner places feces, urine, semen, saliva, or blood upon the person of an employee of the tribe, state, county, municipal city, or federal government.

B. Placing Bodily Fluids upon Government Employee shall be punishable by a fine not to exceed fifteen thousand dollars (\$15,000), by a term of imprisonment not to exceed three (3) years, or by both such fine and imprisonment.

SECTION 17-501.15**SHOOTING WITH INTENT TO KILL.**

A. It shall be unlawful for every person who intentionally and wrongfully shoots another with or discharges any kind of firearm, with intent to kill any person, including an unborn child.

1. For purposes of Section 17-501.15, "unborn child" means the unborn offspring of human beings from the moment of conception, through pregnancy, and until live birth including the human conceptus, zygote, morula, blastocyst, embryo, and fetus.

B. Shooting with Intent to Kill shall be punishable by a fine not to exceed fifteen thousand dollars (\$15,000), by a term of imprisonment not to exceed three (3) years, or by both such fine and imprisonment.

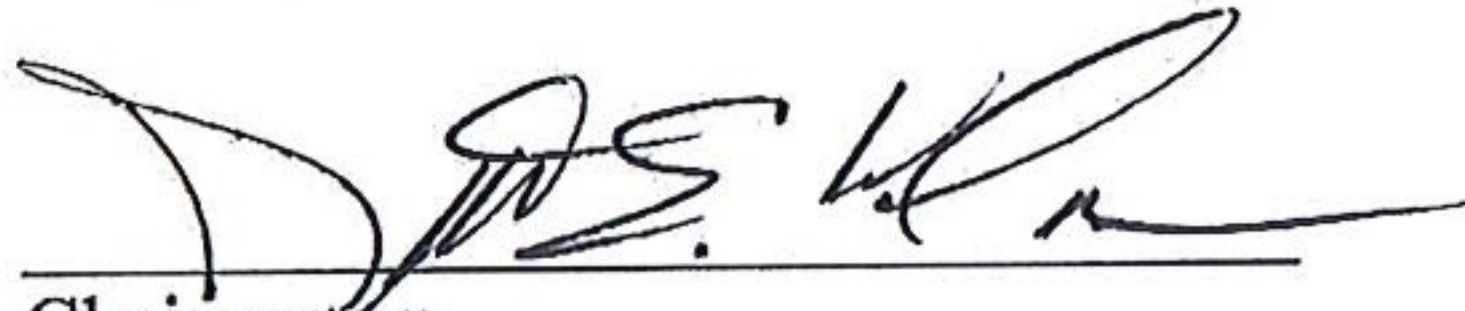
SECTION 17-501.16**ASSAULT.**

For purposes of this Article, "assault" means any willful and unlawful attempt or offer with force or violence to do a corporal hurt to another.

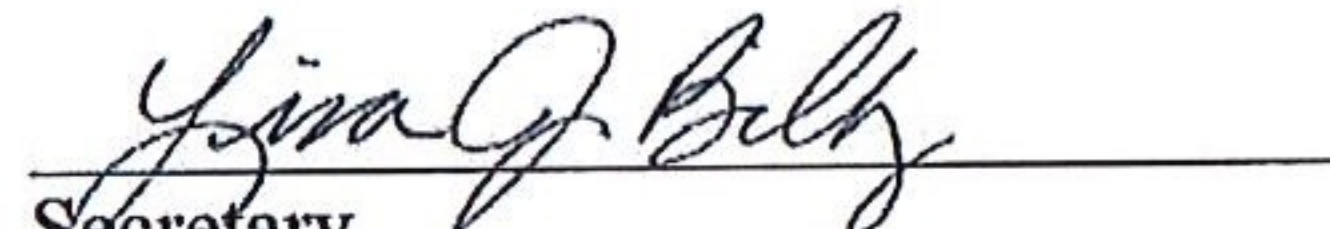
SECTION 17-501.17 **BATTERY.**

For purposes of this Article, "battery" means any willful and unlawful use of force or violence upon the person of another.

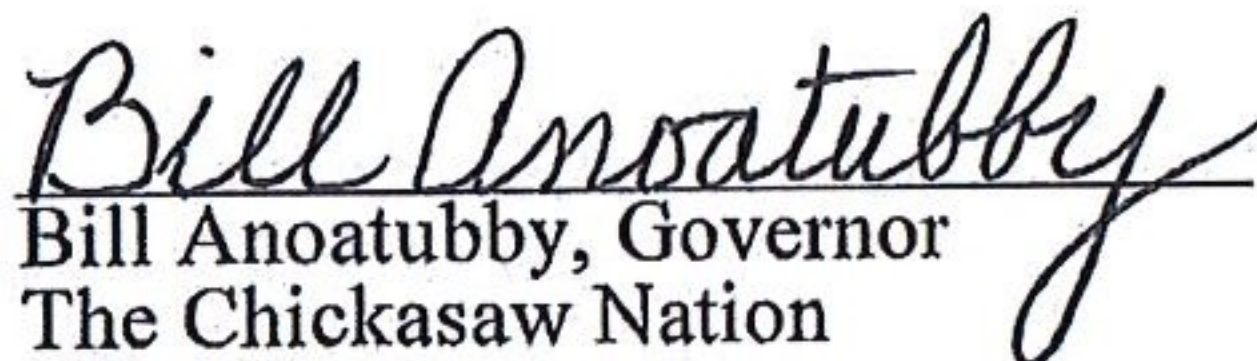
Executed in regular session of the Chickasaw Tribal Legislature, Meeting at Ada, Oklahoma, on December 17, 2021, by a vote of 13 ayes, 0 nays, 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: DEC 17 2021

CHICKASAW TRIBAL LEGISLATURE
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Amendments to Title 17 of the Chickasaw Nation Code
(Assault and Battery)

Explanation:

This Resolution adds seven new offenses to Title 17. The new assault and battery offenses address issues in which an enhanced sentence is warranted.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature